



Western

**~~Primary Industries Levies and Charges
Collection (Consequential Provisions) Act
1991~~**

~~No. 26 of 1991~~

**~~An Act to enact certain saving provisions, and to repeal
certain Acts and amend certain Acts, in consequence of
the enactment of the *Primary Industries Levies and
Charges Collection Act 1991*, and for related purposes~~**

~~[Assented to 1 March 1991]~~

~~The Parliament of Australia enacts:~~

Local Government (Administration) Regulations 1996

Compare between:

[21 Oct 2007, 02-c0-04] and [21 Nov 2009, 02-d0-02]

Western Australia

Local Government Act 1995

Local Government (Administration) Regulations 1996

Short title

1. Citation

~~These regulations~~ This Act may be cited as the *Local Government (Administration) Regulations 1996*¹~~Primary Industries Levies and Charges Collection (Consequential Provisions) Act 1991.~~

2. Commencement

~~These regulations~~ come into operation on 1 July 1996.

~~3. 2. This Act commences at the commencement of the Primary Industries Levies and Charges Collection Act 1991.~~

Consequential amendments of other Acts

~~3. The Acts specified in Schedule 1 are amended as set out in that Schedule.~~

Repeals

~~4. The Acts specified in Schedule 2 are repealed.~~

Saving—levy and charge collection

~~5. Despite the repeal by this Act of an Act, or the provisions of an Act, relating to the collection of levy or charge imposed by another Act (in this section called the “**imposition Act**”) and the amendment by this Act of the imposition Act, the Act so repealed or the provisions so repealed, as the case may be, any regulations made under or for the purposes of that Act or those provisions and any agreement entered into between the Commonwealth and a State or Territory under that Act or those provisions continue to apply in relation to levy or charge imposed before the commencement of this Act as if the repeal had not been effected and the imposition Act had not been amended.~~

Saving—section 9 of the *Pig Slaughter Levy Collection Act 1971*

~~6. Despite the repeal of the *Pig Slaughter Levy Collection Act 1971* by this Act, section 9 of that Act continues to apply in relation to contracts referred to in that section entered into before the commencement of this Act as if the repeal had not been effected.~~

Saving—section 118 of the *Dairy Produce Act 1986*

~~7. (1) Where, immediately before the commencement of this section, a person was entitled:~~

- ~~(a) to make a request under subsection 118 (4) of the *Dairy Produce Act 1986*; or~~
- ~~(b) to make an application to the Administrative Appeals Tribunal under subsection 118 (11) of that Act for a review of a decision other than a decision of the Australian Dairy Corporation under subsection 118 (9) of that Act;~~

~~then, despite the amendments of the *Dairy Produce Act 1986* made by this Act, that Act, as in force immediately before the commencement of this Act, continues to apply in respect of that person in relation to the making of such a request or application and in relation to a decision made under subsection 118 (7) in relation to such a request as if those amendments had not been made.~~

~~(2) Where:~~

- ~~(a) before the commencement of this section a person made a request under subsection 118 (4) of the *Dairy Produce Act 1986*; and~~
- ~~(b) immediately before the commencement of this section, a~~

~~decision had not been made under subsection 118 (7) of that Act in relation to the request;~~

~~then, despite the amendments of the *Dairy Produce Act 1986* made by this Act, that Act, as in force immediately before the commencement of this section, continues to apply in respect of that person in relation to that request and to a decision made under subsection 118 (7) in relation to that request as if those amendments had not been made.~~

~~Saving—section 20 of the *Cattle and Beef Levy Collection Act 1990*~~

~~8. (1)~~ ~~Where, immediately before the commencement of this section, a person was entitled:~~

- ~~(a) to make a request under subsection 20 (1) of the *Cattle and Beef Levy Collection Act 1990*; or~~
- ~~(b) to make an application to the Administrative Appeals Tribunal under subsection 20 (5) of that Act for a review of a decision;~~

~~then, despite the repeal of the *Cattle and Beef Levy Collection Act 1990* by this Act, that Act, as in force immediately before the commencement of this Act, continues to apply in respect of that person in relation to the making of such a request or application and in relation to a decision made under subsection 20 (3) in relation to such a request as if the repeal had not been effected.~~

~~(2) Where:~~

- ~~(a) before the commencement of this section a person made a request under subsection 20 (1) of the *Cattle and Beef Levy Collection Act 1990*; and~~
- ~~(b) immediately before the commencement of this section a decision had not been made under subsection 20 (3) of that Act in relation to the request;~~

~~then, despite the repeal of the *Cattle and Beef Levy Collection Act 1990* by this Act, that Act, as in force immediately before the commencement of this section, continues to apply in respect of that person in relation to that request and to a decision made under subsection 20 (3) in relation to that request as if the repeal had not been effected.~~

~~Saving—review of decisions~~

~~9.~~ ~~Where, immediately before the commencement of this section, a person was entitled to make an application to the Administrative Appeals Tribunal~~

~~under a provision specified in column 2 of an item in Schedule 3 of an Act specified in column 3 of that item, then, despite the repeal or amendment of that Act, that Act, as in force immediately before the commencement of this Act, continues to apply in respect of that person in relation to the making of such an application as if the Act had not been repealed or the amendment made, as the case may be.~~

SCHEDULE 1

Section 3

CONSEQUENTIAL AMENDMENTS OF OTHER ACTS

Apple and Pear Export Charge Act 1976

Section 4:

Repeal the section.

Section 5 (definition of "Association"):

Omit the definition, substitute the following definition:

"Growers' Association" means the association known as the Australian Apple and Pear Growers' Association that was formed at a meeting in Melbourne on 5 and 6 December 1945;"

Section 5:

Add at the end the following subsection:

~~"(3) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the Primary Industries Levies and Charges Collection Act 1991 for the purposes of that Act has the same meaning in this Act as in the Primary Industries Levies and Charges Collection Act 1991."~~

Subsection 6 (2):

Omit the subsection, substitute the following subsection:

~~"(2) The charge is payable by the producer."~~

Subsection 8 (2):

Omit "Association", substitute "Growers' Association".

Apple and Pear Levy Act 1976

Section 3:

Repeal the section.

Subsection 4 (1) (definition of "Association"):

Omit the definition, substitute the following definition:

"Growers' Association" means the association known as the Australian Apple and Pear Growers' Association that was formed at a meeting in Melbourne on 5 and 6 December 1945;"

~~Subsection 4 (1) (definition of “dealer”):~~

~~Omit the definition.~~

SCHEDULE 1—continued

Subsection 4 (1) (definition of “juicing fruit”):

- (a) ~~Omit “grower” (wherever occurring), substitute “producer”.~~
- (b) ~~Omit “dealer”, substitute “selling agent”.~~

Subsection 4 (1) (definition of “processing fruit”):

- (a) ~~Omit “grower” (wherever occurring), substitute “producer”.~~
- (b) ~~Omit “dealer”, substitute “selling agent”.~~

Subsection 4 (1) (definition of “retail sale”):

- (a) ~~Omit “grower”, substitute “producer”.~~
- (b) ~~Omit “dealer”, substitute “selling agent”.~~

Subsection 4 (3):

- (a) ~~Omit “dealer”, substitute “selling agent”.~~
- (b) ~~Omit “growers”, substitute “producers”.~~

Section 4:

~~Add at the end the following subsection:~~

~~“(4) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Subsection 5 (1):

~~Omit “grower” (wherever occurring), substitute “producer”.~~

Subsection 5 (1A):

~~Omit “grower” (wherever occurring), substitute “producer”.~~

Subsection 5 (2):

~~Omit “grower”, substitute “producer”.~~

Subsection 7 (1):

~~Omit “grower” (wherever occurring), substitute “producer”.~~

Subsection 7 (3A):

Omit “grower”, substitute “producer”.

Australian Horticultural Corporation Act 1987

Subsection 3 (1) (definition of “appoint”):

Omit the definition.

SCHEDULE 1—continued

Subsection 3 (1):

Insert the following definition:

~~“ ‘Levies and Charges Collection Act’ means the *Primary Industries Levies and Charges Collection Act 1991*;”.~~

After paragraph 47 (1) (a):

Insert the following paragraph:

~~“(aa) amounts received by the Commonwealth by way of penalty under section 15 of the Levies and Charges Collection Act in relation to amounts of levy referred to in paragraph (a); and”.~~

After paragraph 47 (2) (a):

Insert the following paragraph:

~~“(aa) amounts received by the Commonwealth by way of penalty under section 15 of the Levies and Charges Collection Act in relation to amounts of charge referred to in paragraph (a); and”.~~

After paragraph 47 (4) (a):

Insert the following paragraph:

~~“(aa) amounts of levy received by the Commonwealth under subsection 7 (1) or (2) of the Levies and Charges Collection Act, or by virtue of an agreement entered into under section 10 or 11 of that Act, in relation to such levy; and”.~~

Paragraph 47 (4) (b):

Omit “levy.”, substitute “levy; and”.

After paragraph 47 (5) (a):

Insert the following paragraph:

~~“(aa) amounts of charge received by the Commonwealth under paragraph 7 (3) (b) of the Levies and Charges Collection Act, or by virtue of an agreement entered into under section 10 or 11 of that Act, in relation to such charge; and”.~~

Paragraph 47 (5) (b):

Omit “charge.”, substitute “charge; and”.

After paragraph 47 (5) (b):

Add the following paragraph:

~~“(ba) amounts received by the Commonwealth under subsection 9 (1) of that Act, or by virtue of an agreement entered into under section 10 or 11 of that Act, in respect of penalty payable under that Act.”.~~

SCHEDULE 1—continued

After subsection 47 (5):

Insert the following subsection:

~~“(5A) The reference in paragraph (1) (aa) to amounts received by the Commonwealth by way of penalty under section 15 of the Levies and Charges Collection Act includes a reference to:~~

- ~~(a) amounts received by the Commonwealth under paragraph 7 (1) (f) of that Act; and~~
- ~~(b) amounts received by the Commonwealth under subsection 9 (1) of that Act, or by virtue of an agreement entered into under section 10 or 11 of that Act, in respect of penalty payable under that Act.”.~~

After subsection 47 (6):

Insert the following subsection:

~~“(6A) The reference in paragraph (2) (aa) to amounts received by the Commonwealth by way of penalty under section 15 of the Levies and Charges Collection Act includes a reference to:~~

- ~~(a) amounts received by the Commonwealth under paragraph 7 (1) (f) of that Act; and~~
- ~~(b) amounts received by the Commonwealth under subsection 9 (1) of that Act, or by virtue of an agreement entered into under section 10 or 11 of that Act, in respect of penalty payable under that Act.”.~~

Subsection 47A (1):

Omit the subsection, substitute the following subsection:

~~“(1) The Corporation may enter into an agreement, in writing, with any person who is responsible under:~~

- ~~(a) section 7 or 7A of the Levy Collection Act; or~~
- ~~(b) section 7 or 7A of the Export Charge Collection Act; or~~
- ~~(c) section 7 or 9 of the Levies and Charges Collection Act;~~

~~for the collection of amounts for payment to the Commonwealth, providing for payment by the Corporation to that person in respect of the collection of so much of the amounts collected as are paid to the Corporation.”.~~

Subsection 47A (2):

Omit the subsection, substitute the following subsection:

~~“(2) The Corporation may enter into an agreement in writing, with any person who has agreed, under:~~

~~(a) subsection 7B (1) of the Levy Collection Act; or~~

SCHEDULE 1—continued

~~(b) subsection 7B (1) of the Export Charge Collection Act; or~~

~~(c) subsection 10 (1) or 11 (1) of the Levies and Charges Collection Act;~~

~~to collect amounts on behalf of the Commonwealth, providing for payment by the Corporation to that person in respect of the collection of so much of the amounts collected as are paid to the Corporation.”.~~

Subparagraph 48 (1) (aa) (i):

~~(a) Insert “, (aa)” after “paragraph 47 (1) (a)”.~~

~~(b) Insert “, (aa)” after “or (2) (a)”.~~

Australian Meat and Live-stock Corporation Act 1977

Subsections 34 (2), (3), (4), (5) and (6):

Omit the subsections, substitute the following subsections:

~~“(2) A reference in paragraph (1) (a) to amounts of levy received by the Commonwealth is to be read as including a reference to:~~

~~(a) amounts received from the proprietor of an abattoir under subsection 7 (2) of the *Primary Industries Levies and Charges Collection Act 1991* and amounts payable by way of penalty under section 13 of that Act in relation to amounts of levy referred to in that paragraph; and~~

~~(b) amounts received from the proprietor of an abattoir under section 7 of the *Live-stock Slaughter Levy Collection Act 1964* and amounts payable by way of penalty under section 9 of that Act in relation to amounts of levy referred to in that paragraph.~~

~~“(3) A reference in paragraph (1) (b) to amounts of charge received by the Commonwealth is to be read as including a reference to:~~

~~(a) amounts payable by way of penalty under section 15 of the *Primary Industries Levies and Charges Collection Act 1991* in relation to amounts of charge referred to in that paragraph; and~~

~~(b) amounts payable by way of penalty under section 6 of the *Live-stock Export Charge Collection Act 1977* in relation to amounts of charge referred to in that paragraph.~~

~~“(4) A reference in paragraph (1) (c) to amounts of levy received by the Commonwealth is to be read as including a reference to:~~

- ~~(a) amounts received from a processor under subsection 7 (1) of the *Primary Industries Levies and Charges Collection Act 1991* and amounts payable by way of penalty under section 15 of that Act in relation to amounts of levy referred to in that paragraph; and~~
- ~~(b) amounts received from a processor in accordance with~~

SCHEDULE 1—continued

~~subsection 6 (4) of the *Cattle and Beef Levy Collection Act 1990* and amounts payable by way of penalty under section 8 of that Act in relation to amounts of levy referred to in that paragraph.~~

~~“(5) A reference in paragraph (1) (d) to amounts of charge received by the Commonwealth is to be read as including a reference to:~~

- ~~(a) amounts payable by way of penalty under section 15 of the *Primary Industries Levies and Charges Collection Act 1991* in relation to amounts of charge referred to in that paragraph; and~~
- ~~(b) amounts received from an exporting agent under subsection 6 (5) of the *Cattle and Beef Levy Collection Act 1990* and amounts payable by way of penalty under section 8 of that Act in relation to amounts of charge referred to in that paragraph.~~

~~“(6) A reference in paragraph (1) (e) to amounts of levy received by the Commonwealth is to be read as including a reference to:~~

- ~~(a) amounts received from a selling agent, a processor or a feedlot operator under subsection 7 (1) or (2) of the *Primary Industries Levies and Charges Collection Act 1991* and amounts payable by way of penalty under section 15 of that Act in relation to amounts of levy referred to in that paragraph; and~~
- ~~(b) amounts received from a selling agent, a processor or a feedlot operator under subsection 6 (1), (2) or (3) of the *Cattle and Beef Levy Collection Act 1990* and amounts payable by way of penalty in accordance with section 8 of that Act in relation to amounts of levy referred to in that paragraph.”.~~

Australian Meat and Live-stock Research and Development Corporation Act 1985

Subsections 42 (4), (5), (6), (7) and (8):

Omit the subsections, substitute the following subsections:

~~“(4) A reference in paragraph (1) (a) to amounts of levy received by the Commonwealth is to be read as including a reference to:~~

- ~~(a) amounts received from the proprietor of an abattoir under subsection 7 (2) of the *Primary Industries Levies and Charges Collection Act 1991*, and amounts payable by way of penalty under section 15 of that Act, in~~

- relation to amounts of levy referred to in that paragraph; and
- (b) ~~amounts received from the proprietor of an abattoir under section 7 of the *Live stock Slaughter Levy Collection Act 1964*, and amounts payable by way of penalty under section 9 of that Act, in relation to amounts of levy referred to in that paragraph.~~

SCHEDULE 1—continued

~~“(5) A reference in paragraph (1) (b) to amounts of charge received by the Commonwealth is to be read as including a reference to:~~

- ~~(a) amounts payable by way of penalty under section 15 of the *Primary Industries Levies and Charges Collection Act 1991* in relation to amounts of charge referred to in that paragraph; and~~
- ~~(b) amounts payable by way of penalty under section 6 of the *Live stock Export Charge Collection Act 1977* in relation to amounts of charge referred to in that paragraph.”.~~

~~“(6) A reference in paragraph (1) (ba) to amounts of levy received by the Commonwealth is to be read as including a reference to:~~

- ~~(a) amounts received from a processor under subsection 7 (1) of the *Primary Industries Levies and Charges Collection Act 1991*, and amounts payable by way of penalty under section 15 of that Act, in relation to amounts of levy referred to in that paragraph; and~~
- ~~(b) amounts received from a processor under subsection 6 (4) of the *Cattle and Beef Levy Collection Act 1990* and amounts payable by way of penalty under section 8 of that Act in relation to amounts of levy referred to in that paragraph.~~

~~“(7) A reference in paragraph (1) (bb) to amounts of charge received by the Commonwealth is to be read as including a reference to:~~

- ~~(a) amounts received from an exporting agent under subsection 7 (3) of the *Primary Industries Levies and Charges Collection Act 1991* and amounts payable by way of penalty under section 15 of that Act in relation to amounts of charge referred to in that paragraph; and~~
- ~~(b) amounts received from an exporting agent under subsection 6 (5) of the *Cattle and Beef Levy Collection Act 1990* and amounts payable by way of penalty under section 8 of that Act in relation to amounts of charge referred to in that paragraph.~~

~~“(8) A reference in paragraph (1) (bc) to amounts of levy received by the Commonwealth is to be read as including a reference to:~~

- ~~(a) amounts received from a selling agent, a processor or a feedlot operator under subsection 7 (1) or (2) of the *Primary Industries Levies and Charges Collection Act 1991* and amounts payable by way of penalty~~

~~under section 15 of that Act in relation to amounts of levy referred to in that paragraph; and~~

- ~~(b) amounts received from a selling agent, a processor or a feedlot operator under subsection 6 (1), (2) or (3) of the *Cattle and Beef Levy Collection Act 1990* and amounts payable by way of penalty under section 8 of that Act in relation to amounts of levy referred to in that paragraph.”.~~

SCHEDULE 1—continued

Australian Wine and Brandy Corporation Act 1980

Subsection 4 (1) (definition of “appoint”):

Omit the definition.

Paragraph 32 (b):

After “*Wine Grapes Levy Collection Act 1979*” insert “or section 15 of the *Primary Industries Levies and Charges Collection Act 1991*”.

Section 33:

After “*Wine Grapes Levy Collection Act 1979*” insert “or section 18 of the *Primary Industries Levies and Charges Collection Act 1991*”.

Barley Research Levy Act 1980

Section 3:

Repeal the section.

Subsection 4 (1) (definitions of “grower” and “marketing law”):

Omit the definitions.

Subsection 4 (2):

Omit “grower” (wherever occurring), substitute “producer”.

Subsection 4 (3):

Omit “grower”, substitute “producer”.

Subsection 4 (4):

Omit “grower” (wherever occurring), substitute “producer”.

Section 4:

Add at the end the following subsection:

“(5) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.

Subsection 5 (2):

Omit “grower” (wherever occurring), substitute “producer”.

Section 7:

Omit “grower”, substitute “producer”.

SCHEDULE 1—continued
Beef Production Levy Act 1990

Section 3:

Repeal the section.

Section 4 (definition of “abattoir”):

Omit the definition.

Section 4:

Add at the end the following subsection:

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Cattle Export Charge Act 1990

Section 3:

Repeal the section.

Section 4:

Add at the end the following subsection:

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Cattle Transaction Levy Act 1990

Section 3:

Repeal the section.

Subsection 4 (1) (definition of “processor”):

Omit the definition.

Subsection 4 (1) (definition of “National Cattle Disease Eradication Trust Account”):

Omit the definition, substitute the following definition:

~~“ ‘National Cattle Disease Eradication Trust Account’ means the trust account of that name continued in existence by section 4 of the *National Cattle Disease Eradication Trust Account Act 1991*;”~~

SCHEDULE 1—continued

Section 4:

Add at the end the following subsection:

~~“(5) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Cotton Levy Act 1982

Section 3:

Repeal the section.

Section 4 (definitions of “grower” and “marketing law”):

Omit the definitions.

Section 4:

Add at the end the following subsection:

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Subsection 5 (3):

Omit “grower”, substitute “producer”.

Dairy Produce Act 1986

Subsection 3 (1):

Insert the following definition:

~~“‘**Levies and Charges Collection Act**’ means the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Subsection 3 (1) (definition of “corporation levy”):

Omit the definition, substitute the following definition:

~~“‘**corporation levy**’ means the levy of that name imposed by the first Levy Act~~

~~and includes amounts of penalty (if any) payable under the Levies and Charges Collection Act in relation to that levy;”.~~

~~Subsection 3 (1) (definition of “dairy products levy”):~~

~~Omit “section 67 of this Act”, substitute “section 15 of the Levies and Charges Collection Act”.~~

SCHEDULE 1—continued

Subsection 3 (1) (definition of “exotic animal disease levy”):

Omit “this Act”, substitute “the Levies and Charges Collection Act”.

Subsection 3 (1) (definition of “market support levy”):

Omit “this Act”, substitute “the Levies and Charges Collection Act”.

Subsection 3 (1) (definition of “promotion levy”):

Omit “this Act”, substitute “the Levies and Charges Collection Act”.

Subsection 3 (1) (definition of “research levy”):

Omit “this Act”, substitute “the Levies and Charges Collection Act”.

Heading to Part VI:

Omit the heading, substitute the following heading:

“REFUNDS OF LEVIES”.

Division 1 of Part VI:

Repeal the Division.

Heading to Division 2 of Part VI:

Omit the heading.

Sections 66 to 69 (inclusive):

Repeal the sections.

Paragraph 71 (1) (b):

Omit “under subsection 62 (1)”, substitute “under subsection 7 (1) or (2) of the Levies and Charges Collection Act”.

Paragraph 74 (1) (d):

Omit “under subsection 65 (2)”, substitute “under subsection 18 (3) of the Levies and Charges Collection Act”.

Paragraph 90 (1) (b):

Omit “under subsection 62 (1)”, substitute “under section 7 of the Levies and Charges Collection Act”.

Paragraph 93 (1) (c):

~~Omit “under subsection 62 (1)”, substitute “under section 7 of the Levies and Charges Collection Act”.~~

SCHEDULE 1—continued

Paragraph 101 (d):

Omit “subsection 65 (2)”, substitute “subsection 18 (3) of the Levies and Charges Collection Act”.

Paragraph 107 (c):

Omit “subsection 69 (2)”, substitute “subsection 18 (3) of the Levies and Charges Collection Act”.

Paragraph 108 (2) (c):

Omit “subsection 69 (2)”, substitute “subsection 18 (3) of the Levies and Charges Collection Act”.

Paragraph 113 (2) (b):

Omit the paragraph.

Subsection 118 (1) (definition of “relevant decision”):

Omit paragraphs (a), (b) and (c), substitute the following paragraphs:

“(a) a relevant licence decision; or

(b) — a relevant payment decision.”

Subsection 118 (1) (definition of “relevant remission decision”):

Omit the definition.

Subsection 118 (1) (definition of “reviewable decision”):

Omit paragraph (a).

Subsection 118 (4):

Omit the subsection.

Subsection 118 (6):

Omit “, (4)”.

Subsections 118 (7) and (8):

Omit the subsections.

Paragraphs 126 (d) and (e):

Omit the paragraphs.

Dairy Produce Levy (No. 1) Act 1986

Section 3:

~~Repeal the section.~~

Subsection 4 (1) (definitions of “producer” and “Dairy Produce Act”):

~~Omit the definitions.~~

SCHEDULE 1—continued

Subsection 4(1):

Insert the following definition:

~~“ ‘Levies and Charges Collection Act’ means the *Primary Industries Levies and Charges Collection Act 1991*;”.~~

Subsection 4(2):

Omit “Dairy Produce Act”, substitute “Levies and Charges Collection Act”.

Subsection 4(3):

Omit “Dairy Produce Act”, substitute “Levies and Charges Collection Act”.

Subsection 4(4):

Omit “Dairy Produce Act”, substitute “Levies and Charges Collection Act”.

Subsection 4(5):

Omit “Dairy Produce Act”, substitute “Levies and Charges Collection Act”.

Subsection 4(7):

Omit “Dairy Produce Act”, substitute “Levies and Charges Collection Act”.

Section 4:

Add at the end the following subsection:

~~“(8) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the Levies and Charges Collection Act for the purposes of that Act has the same meaning in this Act as in the Levies and Charges Collection Act.”.~~

Subsection 11(1):

Omit “the proprietor of the factory at which they are produced”, substitute “the producer”.

Section 13:

Repeal the section.

Dairy Produce Levy (No. 2) Act 1986

Section 3:

Repeal the section.

SCHEDULE 1—continued

Section 10:

Omit “importer”, substitute “producer”.

Dried Fruits Levy Act 1971

Section 3:

Repeal the section.

Subsection 4 (1) (definitions of “packing house”, “packed” and “the packer”):

Omit the definitions.

Subsection 4 (2):

(a) Omit “for packing”, substitute “for processing”.

(b) Omit “packing house”, substitute “processing establishment”.

Section 4:

Add at the end the following subsection:

“(3) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.

Section 5:

Omit “packing”, substitute “processing”.

Subsection 6 (4):

Omit “packing”, substitute “processing”.

Section 7:

Repeal the section, substitute the following section:

By whom levy payable

“7. Levy in respect of dried fruits is payable by the producer.”.

Dried Vine Fruits Equalization Act 1978

Subsection 3 (1) (definitions of “month”, “packer” and “producer”):

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| ~~Omit the definitions.~~

SCHEDULE 1—continued

Subsection 3 (1) (definition of “levy”):

Omit the definition, substitute the following definition:

“‘levy’ means an amount of levy imposed by the Levy Act, and includes a penalty under section 15 of the *Primary Industries Levies and Charges Collection Act 1991*.”

Paragraph 7 (1) (b):

Omit “subsection 14 (3)”, substitute “subsection 18 (3) of the *Primary Industries Levies and Charges Collection Act 1991*”.

Part III:

Omit the Part.

Section 29:

Repeal the section.

Section 30:

Omit “or of the Levy Act”.

Section 31:

Repeal the section, substitute the following section:

Review of decisions

“31. Applications may be made to the Administrative Appeals Tribunal for review of decisions made by the Minister for the purposes of subsection 19 (3).”

Dried Vine Fruits Equalization Levy Act 1978

Section 3:

Repeal the section.

Section 4:

Repeal the section, substitute the following section:

Interpretation

~~“4. (1) — In these regulations this Act, unless the contrary intention appears — ÷~~

~~code of conduct ‘authorised person’ means a code ~~person who is an authorised person for the purposes of this Act because of conduct prepared or adopted~~ an appointment made by the Minister under section 5.103(1); 8A;~~

~~committee ‘levy’ means a committee of a council; ~~levy imposed by this Act.~~~~

~~relevant person “(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection*~~

SCHEDULE 1—continued

~~Act 1991 for the purposes of that Act has the same meaning that it in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

After section 8:

Insert the following section:

Appointment of authorised persons

“8A. The Minister may, by writing signed by the Minister, appoint a person to be an authorised person for the purposes of this Act.”.

Goat Fibre Levy Act 1989

Section 3:

Repeal the section.

Section 4:

Add at the end the following subsection:

“(2) ~~Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has in section 5.59; the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Schedule means Schedule to **Section 7:**

Omit “grower”, substitute “producer”.

Section 9:

Omit the Act;

section means, substitute the following section:

Exemption from levy of the fibre used by producer

“9. ~~Where all the leviable fibre that has been both produced by, and processed by or on behalf of a producer in a levy year is such that, but for this section, the levy that would be payable in respect of the fibre would be less than the leviable amount in relation to that year, levy is not imposed on that fibre.”.~~

Section 10:

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(a) ~~Omit “growers”, substitute “producers”.~~

(b) ~~Omit “dealer”, substitute “buying agent or selling agent”.~~

~~Grain Legumes Levy Act 1985~~

~~Section 3:~~

~~Repeal the section.~~

SCHEDULE 1—continued

Subsection 4 (1) (definitions of “grower”, “levy year”, “marketing law” and “processing”):

Omit the definitions.

Subsection 4 (2):

(a) Omit “grower” (wherever occurring), substitute “producer”.

(b) Omit “grower’s”, substitute “producer’s”.

Subsection 4 (3):

Omit “grower”, substitute “producer”.

Subsection 4 (4):

Omit “grower” (wherever occurring), substitute “producer”.

Section 4:

Add at the end the following subsection:

“(6) Unless the contrary intention appears, a word or expression contained in this Act, that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.

Subsection 6 (2)):

Omit “grower” (wherever occurring), substitute “producer”.

Section 8:

Omit “grower”, substitute “producer”.

Subsection 9 (1):

Omit “growers”, substitute “producers”.

Subsection 9 (2):

(a) Omit “grower” (wherever occurring), substitute “producer”.

(b) Omit “grower’s”, substitute “producer’s”.

Subsection 9 (3):

Omit “grower” (wherever occurring), substitute “producer”.

r. 3

Grape Research Levy Act 1986

Section 3:

~~Repeal the section.~~

SCHEDULE 1—continued

Section 4:

~~Repeal the section, substitute the following section:~~

Interpretation

~~“4. (1) In this Act, unless the contrary intention appears:~~

~~‘dried grapes’ means grapes containing less than 60% of moisture by mass;~~

~~‘fresh grapes’ means grapes containing not less than 60% of moisture by mass;~~

~~‘levy’ means levy imposed by this Act;~~

~~‘prescribed goods’ means:~~

- ~~(a) fresh grapes; and~~
- ~~(b) dried grapes; and~~
- ~~(c) grape juice, whether single strength or concentrated;~~

~~being grapes or grape juice produced in Australia.~~

~~“(2) For the purposes of this Act, the quantity of fresh grapes that is the equivalent of a quantity of prescribed goods other than fresh grapes is a number of tonnes equal to:~~

- ~~(a) in the case of dried grapes—a number ascertained by multiplying the number of tonnes of that quantity of dried grapes by 3; and~~
- ~~(b) in the case of grape juice—a number ascertained by dividing the number of litres of that quantity of grape juice:~~
 - ~~(i) in the case of single strength grape juice—by 800 or, if another number is for the time being prescribed for the purposes of this subparagraph, that other number; and~~
 - ~~(ii) in the case of concentrated grape juice—by a number that bears to the number applicable for the purposes of subparagraph (i) the same proportion as the strength of the single strength grape juice from which the concentrated grape juice was derived bears to the strength of the concentrated grape juice.~~

~~“(3) For the purposes of this Act, premises are a processing establishment during a year if the quantity (if any) of fresh grapes, together with the fresh grape equivalent of the quantity (if any) of prescribed goods other than fresh~~

r. 3

~~grapes, used in the processing of prescribed goods at those premises during that year, or either of the immediately preceding 2 years (including years commencing before 1 July 1986), amounts, or amounted, to not less than 5 tonnes.~~

~~“(4) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection*~~

SCHEDULE 1—continued

Act 1991 for the purposes of that Act has the same meaning in this Act as in the Primary Industries Levies and Charges Collection Act 1991.”.

Section 8:

Omit “grower”, substitute “producer”.

Honey Export Charge Act 1973

Section 3:

Repeal the section.

Section 4:

(a) Insert the following definition:

“‘**honey**’ means honey that is produced in Australia;”.

(b) Add at the end the following subsection:

“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.

Section 8:

Omit “exporter”, substitute “producer”.

Honey Levy Act (No. 1) 1962

Section 3:

Repeal the section.

Section 3A (definition of “month”):

Omit the definition.

Section 3A:

Add at the end the following subsection:

“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies*

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and Charges Collection Act 1991.”.

Section 6:

Omit “vendor”, substitute “producer”.

SCHEDULE 1—continued

Honey Levy Act (No. 2) 1962

Section 3:

Repeal the section.

Section 3A (definition of “month”):

Omit the definition.

Section 3A:

Add at the end the following subsection:

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Honey Marketing Act 1988

Paragraph 50 (a):

Add at the end “and”.

Paragraph 50 (b):

Add at the end “and”.

Paragraph 50 (c):

Add at the end “and”.

Paragraph 50 (d):

Add at the end “and”.

After paragraph 50 (d):

Insert the following paragraph:

~~“(da) so much of the amounts from time to time received by the Commonwealth in discharge of a person’s liability (other than a liability in respect of a penalty under section 15 of the Levies and Charges Collection Act) under subsection 7 (1) of that Act in respect of amounts payable by virtue of paragraph 5 (1) (a) of the *Honey Levy Act (No. 1) 1962* or of paragraph 5 (1) (a) of the *Honey*~~

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Levy Act (No. 2) 1962; and”.

After paragraph 50 (c):

Insert the following paragraph:

“(ea) so much of the amounts (if any) received by the Commonwealth as penalties under section 15 of the Levies

SCHEDULE 1—continued

~~and Charges Collection Act as relates to amounts referred to in paragraph (a) of this section; and”.~~

Paragraph 50 (f):

~~Add at the end “and”.~~

After paragraph 50 (f):

~~Add the following paragraph:~~

~~“(g) so much of the amounts (if any) received by the Commonwealth and payable by way of penalty under section 15 of the Levies and Charges Collection Act as relates to amounts referred to in paragraph (b), (c), (d) or (da) of this section.”.~~

Section 50:

~~Add at the end the following subsection:~~

~~“(2) In this section:~~

~~‘Levies and Charges Collection Act’ means the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Subsection 57 (7) (definition of “Parliament”):

~~Omit the definition, substitute the following definition:~~

~~“ ‘Parliament’ means:~~

~~(a) in relation to the Australian Capital Territory the Legislative Assembly for the Australian Capital Territory; and~~

~~(b) in relation to the Northern Territory the Legislative Assembly of the Northern Territory;”.~~

Subsection 57 (7) (definition of “State”):

~~After “includes” insert “the Australian Capital Territory and”.~~

~~*Horticultural Export Charge Act 1987*~~

Section 4:

~~Repeal the section.~~

After section 5:

r. 3

Insert the following section:

Interpretation

~~“5A. (1) In this Act, unless the contrary intention appears:~~

~~‘chargeable horticultural products’ means horticultural products prescribed for the purposes of this definition;~~

~~‘cut flowers and foliage’ includes processed cut flowers and foliage;~~

SCHEDULE 1—continued

~~‘fruits’ includes processed fruits;~~

~~‘horticultural products’ means:~~

- ~~(a) fruits; and~~
- ~~(b) vegetables; and~~
- ~~(c) nuts; and~~
- ~~(d) nursery products; and~~
- ~~(e) cut flowers and foliage; and~~
- ~~(f) products prescribed for the purposes of this paragraph;~~

~~‘nursery products’ includes trees, shrubs, plants, seeds, bulbs, corms, tubers, propagating material and plant tissue cultures, grown for ornamental purposes or for producing fruits, vegetables, nuts or cut flowers and foliage;~~

~~‘nuts’ includes processed nuts;~~

~~‘vegetables’ includes:~~

- ~~(a) mushrooms and other edible fungi; and~~
- ~~(b) processed vegetables (including mushrooms and other edible fungi).~~

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Section 12:

~~Omit “owner”, substitute “producer”.~~

Horticultural Levy Act 1987

Section 4:

~~Repeal the section.~~

After section 5:

~~Insert the following section:~~

Interpretation

r. 3

~~“5A. (1) In this Act, unless the contrary intention appears:~~

~~‘cut flowers and foliage’ includes processed cut flowers and foliage;~~

~~‘fruits’ includes processed fruits;~~

~~‘horticultural products’ means:~~

~~(a) fruits; and~~

~~(b) vegetables; and~~

~~(c) nuts; and~~

SCHEDULE 1—continued

- ~~(d) nursery products; and~~
- ~~(e) cut flowers and foliage; and~~
- ~~(f) products prescribed for the purposes of this paragraph;~~

~~‘leviable horticultural products’ means horticultural products prescribed for the purposes of this definition;~~

~~‘nursery products’ includes trees, shrubs, plants, seeds, bulbs, corms, tubers, propagating material and plant tissue cultures, grown for ornamental purposes or for producing fruits, vegetables, nuts or cut flowers and foliage;~~

~~‘nuts’ includes processed nuts;~~

~~‘vegetables’ includes:~~

- ~~(a) mushrooms and other edible fungi; and~~
- ~~(b) processed vegetables (including mushrooms and other edible fungi).~~

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”~~

Horticultural Policy Council Act 1987

Section 3 (definition of “appoint”):

~~Omit the definition.~~

Section 3 (definition of “Parliament”):

~~Omit the definition, substitute the following definition:~~

~~“‘Parliament’ means:~~

- ~~(a) in relation to the Australian Capital Territory the Legislative Assembly for the Australian Capital Territory; and~~
- ~~(b) in relation to the Northern Territory the Legislative Assembly of the Northern Territory;”~~

Section 3 (definition of “State”):

~~After “includes” insert “the Australian Capital Territory and”.~~

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~~Horticultural Research and Development Corporation Act 1987~~

~~Subsection 3 (1) (definitions of “appoint”, “Export Charge Collection Act” and “Levy Collection Act”):~~

~~Omit the definitions.~~

SCHEDULE 1—continued

Subsection 3 (1):

Insert the following definition:

~~“ ‘Levies and Charges Collection Act’ means the *Primary Industries Levies and Charges Collection Act 1991*;”.~~

After paragraph 45 (1) (a):

Insert the following paragraph:

~~“(aa) amounts received by the Commonwealth by way of penalty under section 15 of the Levies and Charges Collection Act in relation to amounts of levy referred to in paragraph (a); and”.~~

After paragraph 45 (2) (a):

Insert the following paragraph:

~~“(aa) amounts received by the Commonwealth by way of penalty under section 15 of the Levies and Charges Collection Act in relation to amounts of charge referred to in paragraph (a); and”.~~

After paragraph 45 (4) (a):

Insert the following paragraph:

~~“(aa) amounts of levy received by the Commonwealth under subsection 7 (1) or (2) of the Levies and Charges Collection Act, or by virtue of an agreement entered into under section 10 or 11 of that Act, in relation to such levy; and”.~~

Paragraph 45 (4) (b):

Omit “levy.”, substitute “levy; and”.

After paragraph 45 (5) (a):

Insert the following paragraph:

~~“(aa) amounts of charge received by the Commonwealth under paragraph 7 (3) (a) of the Levies and Charges Collection Act, or by virtue of an agreement entered into under section 10 or 11 of that Act, in relation to such charge; and”.~~

Paragraph 45 (5) (b):

Omit “charge.”, substitute “charge; and”.

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After paragraph 45 (5) (b):

Add the following paragraph:

~~“(ba) amounts received by the Commonwealth under subsection 9 (1) of that Act, or by virtue of an agreement entered into under section 10 or 11 of that Act, in respect of penalty payable under that Act.”.~~

SCHEDULE 1—continued

After subsection 45 (5):

Insert the following subsection:

~~“(5A) The reference in paragraph (1) (aa) to amounts received by the Commonwealth by way of penalty under section 15 of the Levies and Charges Collection Act includes a reference to:~~

- ~~(a) amounts received by the Commonwealth under paragraph 7 (1) (f) of that Act; and~~
- ~~(b) amounts received by the Commonwealth under subsection 9 (1) of that Act, or by virtue of an agreement entered into under section 10 or 11 of that Act, in respect of penalty payable under that Act.”.~~

After subsection 45 (6):

Insert the following subsection:

~~“(6A) The reference in paragraph (2) (aa) to amounts received by the Commonwealth by way of penalty under section 15 of the Levies and Charges Collection Act includes a reference to:~~

- ~~(a) amounts received by the Commonwealth under paragraph 7 (3) (b) of that Act; and~~
- ~~(b) amounts received by the Commonwealth under subsection 9 (1) of that Act, or by virtue of an agreement entered into under section 10 or 11 of that Act, in respect of penalty payable under that Act.”.~~

Subsection 45A (1):

Omit the subsection, substitute the following subsection:

~~“(1) The Corporation may enter into an agreement, in writing, with any person who is responsible under:~~

- ~~(a) section 7 or 7A of the Levy Collection Act; or~~
- ~~(b) section 7 or 7A of the Export Charge Collection Act; or~~
- ~~(c) section 7 or 9 of the Levies and Charges Collection Act;~~

~~for the collection of amounts for payment to the Commonwealth, providing for payment by the Corporation to that person in respect of the collection of so much of the amounts collected as are paid to the Corporation.”.~~

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Subsection 45A (2):

~~Omit the subsection, substitute the following subsection:~~

~~“(2) The Corporation may enter into an agreement in writing, with any person who has agreed, under:~~

~~(a) subsection 7B (1) of the Levy Collection Act; or~~

SCHEDULE 1—continued

~~(b) subsection 7B (1) of the Export Charge Collection Act; or~~

~~(c) subsection 10 (1) or 11 (1) of the Levies and Charges Collection Act;~~

~~to collect amounts on behalf of the Commonwealth, providing for payment by the Corporation to that person in respect of the collection of so much of the amounts collected as are paid to the Corporation.”.~~

Subparagraph 48 (1) (aa) (i):

~~(a) Insert “, (aa)” after “paragraph 45 (1) (a)”.~~

~~(b) Insert “, (aa)” after “or (2) (a)”.~~

Laying Chicken Levy Act 1988

Section 3:

~~Repeal the section.~~

After section 3:

~~Insert the following sections:~~

Interpretation

~~“3A. (1) In this Act, unless the contrary intention appears:~~

~~‘chicken’ means a chicken hatched from the egg of a domesticated fowl;~~

~~‘hatchery’ means a hatchery where chickens are hatched for commercial purposes;~~

~~‘laying chicken’ means a female chicken that is to be raised for the production of eggs.~~

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”~~

Nominal groups of 100 chickens

~~“3B. For the purposes of this Act, where, in accordance with the practice of the poultry industry, the proprietor of a hatchery treats a number of chickens, being a number not exceeding 106, as 100 chickens, that number of chickens will be taken to be 100 chickens.”.~~

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Section 8:

Omit “proprietor of the hatchery in which the chickens were hatched”,
substitute “producer of the chickens”.

SCHEDULE 1—continued

Live-stock Export Charge Act 1977

Section 3:

Repeal the section.

Section 4 (definition of “exporter”):

Omit the definition.

Section 4:

Add at the end the following subsection:

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Section 12:

~~(a) Omit “exporter”, substitute “producer”.~~

~~(b) Add at the end the following subsection:~~

~~“(2) In this section:~~

~~‘producer’ includes a State and an authority of a State.”.~~

Live-stock Slaughter Levy Act 1964

Section 3:

Repeal the section.

Subsection 4 (1) (definition of “abattoir”):

Omit the definition.

Section 4:

Add at the end the following subsection:

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

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~~Meat Chicken Levy Act 1969~~

~~Section 3:~~

~~Repeal the section.~~

SCHEDULE 1—continued

Section 4:

Insert the following definition:

“‘**hatchery**’ means a hatchery where chickens are hatched for commercial purposes;”.

Section 4:

Add at the end the following subsection:

“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.

Oilseeds Levy Act 1977

Section 3:

Repeal the section.

Subsection 4 (1) (definitions of “grower”, “levy year”, “marketing law” and “processing”):

Omit the definitions.

Subsection 4 (2):

Omit “grower” (wherever occurring), substitute “producer”.

Subsection 4 (3):

Omit “grower”, substitute “producer”.

Subsection 4 (4):

Omit “grower” (wherever occurring), substitute “producer”.

Section 4:

Add at the end the following subsection:

“(6) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies*

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and Charges Collection Act 1991.”.

Subsection 5(2):

Omit “grower” (wherever occurring), substitute “producer”.

Section 7:

Omit “grower”, substitute “producer”.

SCHEDULE 1—continued

Subsection 8 (1):

Omit “growers”, substitute “producers”.

Subsection 8 (2):

Omit “grower” (wherever occurring), substitute “producer”.

Subsection 8 (3):

Omit “grower”, substitute “producer”.

Pasture Seed Levy Act 1989

Section 3:

Repeal the section.

Section 4:

Add at the end the following subsection:

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Section 8:

Omit “grower”, substitute “producer”.

Pig Industry Act 1986

Section 3 (definition of “appoint”):

Omit the definition.

Subsection 12 (6) (definition of “Parliament”):

~~“ ‘Parliament’ means:~~

- ~~(a) in relation to the Australian Capital Territory the Legislative Assembly for the Australian Capital Territory; and~~
- ~~(b) in relation to the Northern Territory the Legislative Assembly of the Northern Territory;”.~~

Subsection 12 (6) (definition of “State”):

r. 3

After “includes” insert “the Australian Capital Territory and”.

Subsection 23 (2):

Omit the subsection, substitute the following subsection:

“(2) A reference in this subsection (1) to amounts of levy received by the Commonwealth includes a reference to:

SCHEDULE 1—continued

- (a) ~~amounts received from the producer under subsection 7 (1) of the *Primary Industries Levies and Charges Collection Act 1991*, and amounts payable by way of penalty under section 15 of that Act, in relation to amounts of levy referred to in that subsection; and~~
- (b) ~~amounts received from the producer under section 6 of the *Pig Slaughter Levy Collection Act 1971*, and amounts payable by way of penalty under section 7 of that Act, in relation to amounts of levy referred to in that subsection.”.~~

Pig Slaughter Levy Act 1971

Section 3:

Repeal the section.

Section 4 (definition of “abattoir”):

Omit the definition.

Section 4:

Add at the end the following subsection:

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Section 7:

Omit “person who owns the pig at the time when the slaughter takes place”, substitute “producer”.

Poultry Industry Levy Act 1965

Section 3:

Repeal the section.

Section 4:

Add at the end the following subsection:

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the~~

r. 3

Primary Industries Levies and Charges Collection Act 1991 for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.

SCHEDULE 1—continued

Section 7:

Omit “owner”, substitute “producer”.

Primary Industries and Energy Research and Development Act 1990

Section 35:

Repeal the section:

Sugar Cane Levy Act 1987

Section 3:

Repeal the section:

Subsection 4 (1) (definitions of “grower”, “miller”, “organisation” and “premises”):

Omit the definitions.

Section 4:

Add at the end the following subsection:

“(3) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.

Section 8:

Repeal the section, substitute the following section:

By whom levy payable

“8. Levy on accepted sugar cane is payable:

- (a) as to 50% of the levy or such other percentage as is prescribed from time to time for the purposes of this paragraph by the producer prescribed for the purposes of this paragraph; and
- (b) as to the remainder of the levy by the producer prescribed for the purposes of this paragraph.”.

Triticale Levy Act 1988

Section 3:

r. 3

~~Repeal the section.~~

~~After section 4:~~

~~Insert the following section:~~

SCHEDULE 1—continued

Interpretation

~~“4A. (1) In this Act, unless the contrary intention appears:~~

~~‘leviable grain’ means triticale;~~

~~‘leviable weight’, in relation to a levy year, means:~~

~~(a) 15 tonnes; or~~

~~(b) if, before the commencement of the levy year, another weight is prescribed in relation to that year, that prescribed weight.~~

~~“(2) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.~~

Paragraph 5(a):

~~Omit “grower” (wherever occurring), substitute “producer”.~~

Section 7:

~~Omit “grower”, substitute “producer”.~~

Subsection 8(1):

~~Omit “growers”, substitute “producers”.~~

Subsection 8(2):

~~(a) Omit “grower” (wherever occurring), substitute “producer”.~~

~~(b) Omit “growers”, substitute “producer’s”.~~

Subsection 8(3):

~~Omit “grower”, substitute “producer”.~~

Wheat Industry Fund Levy Act 1989

Section 3:

~~Repeal the section.~~

After section 4:

~~Insert the following section:~~

r. 4

Interpretation

~~“4A. (1) In this Act, unless the contrary intention appears:~~

~~‘value’ means sale value as ascertained in accordance with the regulations to a form followed by a designation is a reference to the form so designated set;~~

~~“(2) Where a producer of wheat permits the wheat to be delivered to another person or to be taken by another person out in Schedule 1 to these regulations, of the producer’s~~

~~*[Regulation 3 amended in Gazette 23 Apr 1999 p. 1717;
28 Jun 2002 p. 3079.]*~~

4. Resignation of committee members

A committee member may resign from membership of

SCHEDULE 1—continued

~~possession or control, the committee by giving the CEO or the committee's~~
presiding member written notice of the resignation.

4A. Meeting, or part of meeting, may be closed~~producer is taken~~
to public — s. 5.23(2)(h)

The determination by the local government of a price for the
sale or purchase of property by the local government, and the
discussion of such a matter, are matters prescribed for the
purposes of section 5.23(2)(h).

[Regulation 4A inserted in Gazette 31 Mar 2005 p. 1037.]

5. Question time for the public at certain meetings —
s. 5.24(1)(b)

For the purposes of section 5.24(1)(b), the meetings at which
time is to be allocated for questions to be raised by members of
the public and responded to are —

- (a) every special meeting of a council;
- (b) every meeting of a committee to which the local
government has delegated a power or duty.

6. Minimum question time for the public — s. 5.24(2)

- (1) The minimum time to be allocated for the asking of and
responding to questions raised by members of the public at
ordinary meetings of councils and meetings referred to in
regulation 5 is 15 minutes.

- (2) Once all the questions raised by members of the public have been asked and responded to at a meeting referred to in subregulation (1), nothing in these regulations prevents the unused part of the minimum question time period from being used for delivered the wheat to the other matters.

7. Procedures for question time for the public — s. 5.24(2)

- (1) Procedures for the asking of and responding to questions raised by members of the public at a meeting referred to in regulation 6(1) are to be determined —

(a) by the person presiding at the meeting; or-

(b) in the case where the majority of members of the council or committee present at the meeting disagree with the person presiding, by the majority of those members,

having regard to the requirements of subregulations (2), (3) and (5).

- (2) The time allocated to the asking of and responding to questions raised by members of the public at a meeting referred to in regulation 6(1) is to precede the discussion of any matter that requires a decision to be made by the council or the committee, as the case may be.

- (3) Each member of the public who wishes to ask a question at a meeting referred to in regulation 6(1) is to be given an equal and fair opportunity to ask the question and receive a response.

- (4) Nothing in subregulation (3) requires —

(a) a council to answer a question that “(3) Where a producer of wheat causes the wheat to be carried by a person or persons to another person who does not relate to a matter affecting the local government;

(b) a council at a special meeting to answer a question that does not relate to receive the wheat for the purpose of the meeting; or

(c) a committee to answer a question that does not relate to a function of the committee.

(5) If, during the time allocated for questions to be raised by members of the public and responded to, a question relating to a matter in which a relevant person has an interest, as referred to in section 5.60, is directed to the relevant person, the relevant person is to —

(a) declare that he or she has an interest in the matter; and

(b) allow another person to respond to the question.

[Regulation 7 amended in Gazette 28 Jun 2002 p. 3079.]

8. Procedure where no quorum at council or committee meetings — s. 5.25(1)(c)

If a quorum has not been established within the 30 minutes after a council or committee meeting is due to begin then the meeting can be adjourned —

(a) in the case of a council, by the mayor or president or if the mayor or president is not present at the meeting, by the deputy mayor or deputy president;

(b) in the case of a committee, by the presiding member of the committee or if the presiding member is not present at the meeting, by the deputy presiding member;

(c) if no person referred to in paragraph (a) or (b), as the case requires, is present at the meeting, by a majority of members present;

(d) if only one member is present, by that member; or

(e) if no member is present or if no member other than the CEO is present, by the CEO or a person authorised by the CEO.

9. Voting at council or committee meetings — s. 5.25(1)(d)

Voting at a council or committee meeting is to be conducted so that no voter's vote is secret.

10. Revoking or changing decisions made at council or committee meetings — s. 5.25(1)(e)

(1) If a decision has been made at a council or a committee meeting then any motion to revoke or change the decision must be supported —

(a) in the case where an attempt to revoke or change the decision had been made within the previous 3 months but had failed, by an absolute majority; or

(b) in any other case, by at least $\frac{1}{3}$ of the number of offices (whether vacant or not) of members of the council or committee,

inclusive of the mover.

(1a) Notice of a motion to revoke or change a decision referred to in subregulation (1) is to be signed by members of the council or committee numbering at least $\frac{1}{3}$ of the number of offices (whether vacant or not) of members of the council or committee, inclusive of the mover.

(2) If a decision has been made at a council or a committee meeting then any decision to revoke or change the first-mentioned decision must be made —

(a) in the case where the decision to be revoked or changed was required to be made by an absolute majority or by a special majority, by that kind of majority; or

(b) in any other case, by an absolute majority.

(3) This regulation does not apply to the change of a decision unless the effect of the change would be that the decision would be revoked or would become substantially different.

[Regulation 10 amended in Gazette 31 Mar 2005 p. 1030.]

11. Content of minutes of council or committee meetings —
s. 5.25(1)(f)

The content of minutes of a meeting of a council or a committee is to include —

- (a) the names of the members present at the meeting;
- (b) where a member enters or leaves the meeting during the course of the meeting, the time of entry or departure, as the case requires, in the chronological sequence of the business of the meeting;
- (c) details of each motion moved at the meeting, the mover and the outcome of the motion;
- (d) details of each decision made at the meeting;
- (da) written reasons for each decision made at the meeting that is significantly different from the relevant written recommendation of a committee or an employee as defined in section 5.70 (but not a decision to only note the matter or to return the recommendation for carrying it to a further consideration);
- (e) a summary of each question raised by members of the public at the meeting and a summary of the response to the question; and
- (f) in relation to each disclosure made under section 5.65 or 5.70 in relation to the meeting, where the extent of the interest has also been disclosed, the extent of the interest.

[Regulation 11 amended in Gazette 23 Apr 1999 p. 1717.]

12. Public notice of council or committee meetings —
s. 5.25(1)(g)

- (1) At least once each year a local government is to give local public notice of the dates on which and the time and place at which —
 - (a) the ordinary council meetings; and

(b) the committee meetings that are required under the Act to be open to members of the public or that are proposed to be open to members of the public,

are to be held in the next 12 months.

(2) A local government is to give local public notice of any change to the date, time or place of a meeting referred to in subregulation (1).

(3) Subject to subregulation (4), if a special meeting of a council is to be open to members of the public then the local government is to give local public notice of the date, time, place and purpose of the special meeting.

(4) If a special meeting of a council is to be open to members of the public but, in the CEO's opinion, it is not practicable to give local public notice of the matters referred to in subregulation (3), then the local government is to give public notice of the date, time, place and purpose of the special meeting in the manner and to the extent that, in the CEO's opinion, is practicable.

13. Public inspection of unconfirmed minutes of council or committee meetings — s. 5.25(1)(i)

A local government is to ensure that unconfirmed minutes of each council and committee meeting are available for inspection by members of the public —

(a) in the case of a council meeting, within 10 business days after the meeting; and

(b) in the case of a committee meeting, within 5 business days after the meeting.

14. Public inspection of certain documents relating to council or committee meetings — s. 5.25(1)(j)

(1) A local government is to ensure that notice papers and agenda relating to any council or committee meeting and reports and other documents which —

- (a) are to be tabled at the meeting; or
- (b) have been produced by the local government or a committee for presentation at the meeting,

and which have been made available to members of the council or committee for the meeting are available for inspection by members of the public from the time the notice papers, agenda or documents were made available to the members of the council or committee.

- (2) Nothing in subregulation (1) entitles members of the public to inspect the information referred to in that subregulation if, in the CEO's opinion, the meeting or that part of the meeting to which the information refers is likely to be closed to members of the public under section 5.23(2).

[Regulation 14 amended in Gazette 31 Mar 2005 p. 1030.]

14A. Attendance at meetings by means of instantaneous communication — s. 5.25(1)(ba)

- (1) A person who is not physically present at a meeting of a council or committee is to be taken to be present at the meeting if —

(a) the person is simultaneously in audio contact, by telephone or other means of instantaneous communication, with each other person present at the meeting;

(b) the person is in a suitable place; and

(c) the council has approved* of the arrangement.

- (2) A council cannot give approval under subregulation (1)(c) if to do so would mean that at more than half of the meetings of the council, or committee, as the case may be, in that financial year, a person who was not physically present was taken to be present in accordance with this regulation.

- (3) A person referred to in this regulation is no longer to be taken to be present at a meeting if the person ceases to be in

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instantaneous communication with each other person present at the meeting.

(4) In this regulation —

suitable place means a place that the council has approved* as a suitable place for the purpose of this regulation and that is located —

(a) in a townsite or other residential area; and

(b) 150 km or further from the place at which the meeting is to be held under regulation 12, measured along the shortest road route ordinarily used for travelling;

townsite has the same meaning given to that term in the *Land Administration Act 1997* section 3(1).

* Absolute majority required.

[Regulation 14A inserted in Gazette 31 Mar 2005 p. 1031.]

14B. Attendance at meetings by means of instantaneous communication after natural emergency — s. 5.25(1)(ba)

(1) If a council member is prevented from being physically present at a meeting of the council because of fire, flood, lightning, movement of land, storm, or any other natural disaster the member is to be ~~destination, the wheat is taken to be present at the meeting if — have been delivered to the last mentioned person.~~

(a) the member is simultaneously in audio contact, by telephone or other means of instantaneous communication, with each other person present at the meeting; and

~~“(4) If the ownership of wheat passes from the producer to a person or to a number of persons in succession without any delivery of the wheat, a reference in this Act to the producer is a reference to that person or the last of those persons, as the case may be.~~

~~“(5) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of~~

that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.

Section 5:

Omit “grower” (wherever occurring), substitute “producer”.

Section 7:

Omit “grower”, substitute “producer”.

Subsection 8 (1):

Omit “grower” (wherever occurring), substitute “producer”.

Subsection 8 (2):

Omit “grower” (wherever occurring), substitute “producer”.

Wheat Marketing Act 1989

Section 84 (definition of “levy”):

Omit the definition, substitute the following definition:

“‘levy’ means:

(a) levy imposed by the *Wheat Industry Fund Levy Act 1989*; and

(b) the member is authorised to be present~~any amount payable by~~ —

_____ (i) the Mayor;

_____ (ii) the President; or

_____ (iii) the council.

(2) A person referred to in this regulation is no longer to be taken to be present at a meeting if the person ceases to be in instantaneous communication with each other person present at the meeting.

(3) A place where a person referred to in this regulation is physically present during a meeting is not a place that is open to members of the public way of penalty under section 5.23(1). 7 of the *Wheat Industry Fund Levy Collection Act 1989*; and

(4) In this regulation —

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person referred to in this regulation, in respect of a meeting, means a council member who is prevented from being physically present at that meeting.

[Regulation 14B inserted in Gazette 31 Mar 2005 p. 1031-2; amended in Gazette 19 Aug 2005 p. 3872.]

15. Matters for discussion at general electors' meetings — s. 5.27(3)

For the purposes of section 5.27(3), the matters to be discussed at a general electors' meeting are, firstly, the contents of the annual report for the previous financial year and then any other general business.

16. Requests for electors' special meetings — s. 5.28(2)

A request for a special meeting of the electors of a district is to be in the form of Form 1.

17. Voting at electors' meetings — s. 5.31

(1) Each elector who is present at a general or special meeting of electors is entitled to one vote on each matter to be decided at the meeting but does not have to vote.

(2) All decisions at a general or special meeting of electors are to be made by a simple majority of votes.

(3) Voting at a general or special meeting of electors is to be conducted so that no voter's vote is secret.

18. Procedures at electors' meetings — s. 5.31

Subject to regulations 15 and 17, the procedure to be followed at a general or special meeting of electors is to be determined by the person presiding at the meeting.

**18A. Advertisement for position of CEO or senior employee —
s. 5.36(4) and 5.37(3)**

(1) If a position of CEO, or of senior employee, of a local government becomes vacant, the local government is to advertise the position —

(a) on a notice board exhibited to the public at the local government's offices, if the position is —

(i) to be filled on a part time basis by a person who is also employed by another local government; or

(ii) an acting position for a term not exceeding one year;

or

(b) otherwise, in a newspaper circulating generally throughout the State.

(2) An advertisement referred to in subregulation (1) is to contain —

(a) the details of the remuneration and benefits offered;

(b) details of the place where applications for the position are to be submitted;

(c) the date and time for the closing of applications for the position;

(d) the duration of the proposed contract;

(e) contact details for a person who can provide further information about the position; and

(f) any other information that the local government considers is relevant.

[Regulation 18A inserted in Gazette 31 Mar 2005 p. 1037-8;
amended in Gazette 19 Aug 2005 p. 3872.]

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18B. Matters to be included in contracts for CEO's and senior employees — s. 5.39(3)(c)

For the purposes of section 5.39(3)(c), a contract governing the employment of a person who is a CEO, or a senior employee, of a local government is to provide for a maximum amount of money (or a method of calculating such an amount) to which the person is to be entitled if the contract is terminated before the expiry date, which amount is not to exceed whichever is the lesser of —

(a) the value of one year's remuneration under the contract;
or

(b) the value of the remuneration that the person would have been entitled to had the contract not been terminated.

[Regulation 18B inserted in Gazette 13 May 2005 p. 2086.]

18C. Selection and appointment process for CEO's

The local government is to approve a process to be used for the selection and appointment of a CEO for the local government before the position of CEO of the local government is advertised.

[Regulation 18C inserted in Gazette 31 Mar 2005 p. 1038.]

18D. Local government to consider performance review on CEO

A local government is to consider each review on the performance of the CEO carried out under section 5.38 and is to accept the review, with or without modification, or to reject the review.

[Regulation 18D inserted in Gazette 31 Mar 2005 p. 1038.]

18E. Offence to give false information in application for employment with local government

A person must not, in connection with an application for the position of CEO of a local government —

- (a) make a statement, or give any information, as to academic, or other tertiary level, qualifications held by the applicant that the person knows is false in a material particular; or
- (b) make a statement, or give any information, as to academic, or other tertiary level, qualifications held by the applicant which is false or misleading in a material particular, with reckless disregard as to whether or not the statement or information is false or misleading in a material particular.

Penalty: \$5 000.

[Regulation 18E inserted in Gazette 31 Mar 2005 p. 1038-9; amended in Gazette 19 Aug 2005 p. 3872.]

18F. Remuneration and benefits of CEO to be as advertised

The remuneration and other benefits paid to a CEO on the appointment of the CEO are not to differ from the remuneration and benefits advertised for the position under section 5.36(4).

[Regulation 18F inserted in Gazette 31 Mar 2005 p. 1039.]

18G. Limits on delegations to CEO's — s. 5.43

Powers and duties of a local government exercised under the following provisions are prescribed under section 5.43(i) as powers and duties that a local government cannot delegate to a CEO —

- (a) section 7.12A(2), (3)(a) or (4); and
- (b) regulations 18C and 18D.

[Regulation 18G inserted in Gazette 31 Mar 2005 p. 1039.]

19. Records to be kept by delegates — s. 5.46(3)

Where a power or duty has been delegated under the Act to the CEO or to any other local government employee, the person to

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whom the power or duty has been delegated is to keep a written record of —

- (a) how the person exercised the power or discharged the duty;
- (b) when the person exercised the power or discharged the duty; and
- (c) the persons or classes of persons, other than council or committee members or employees of the local government, directly affected by the exercise of the power or the discharge of the duty.

19A. Payments to employee in addition to contract or award — s. 5.50(3)

- (1) The value of a payment or payments made under section 5.50(1) and (2) to an employee whose employment with a local government finishes after 1 January 2010 is not to exceed in total —

- (a) if the person accepts voluntary severance by resigning as an employee, the value of the person's final annual remuneration; or
- (b) in all other cases, \$5 000.

- (2) In this regulation —

final annual remuneration in respect of a person, means the value of the annual remuneration paid, or payable, to the person by the local government which employed that person immediately before the person's employment with the local government finished.

[Regulation 19A inserted in Gazette 31 Mar 2005 p. 1032.]

19B. Annual report to contain information on payments to employees — s. 5.53(2)(g)

For the purposes of section 5.53(2)(g) the annual report of a local government for a financial year is to contain the following information —

- (a) the number of employees of the local government entitled to an annual salary of \$100 000 or more;
- (b) the number of those employees with an annual salary entitlement that falls within each band of \$10 000 over \$100 000.

[Regulation 19B inserted in Gazette 31 Mar 2005 p. 1032.]

19C. Planning for the future — s. 5.56

- (1) In this regulation and regulation 19D —

plan for the future means a plan made under section 5.56.

- (2) A local government is to make a plan for the future of its district in respect of the period specified in the plan (being at least 2 financial years).

- (3) A plan for the future of a district is to set out the broad objectives of the local government for the period specified in the plan.

- (4) A local government is to review its current plan for the future of its district every 2 years and may modify the plan, including extending the period the plan is made in respect of.

- (5) A council is to consider a plan, or modifications, submitted to it and is to determine* whether or not to adopt the plan, or the modifications, as is relevant.

*Absolute majority required.

- (6) If a plan, or modified plan, is adopted by the council then the plan or modified plan is to apply to the district for the period of time specified in the plan.

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(7) A local government is to ensure that the electors and ratepayers of its district are consulted during the development of a plan for the future of the district, and when preparing any modifications of a plan.

(8) A plan for the future of a district is to contain a description of the involvement by the electors and ratepayers in the development of the plan, and any modifications of the plan.

(9) A local government is to ensure that a plan for the future made in accordance with this regulation applies in respect of each financial year after the financial year ending 30 June 2006.

[Regulation 19C inserted in Gazette 31 Mar 2005 p. 1033.]

19D. Notice of plan to be given

(1) After a plan for the future, or modifications to a plan, are adopted under regulation 19C the local government is to give local public notice in accordance with subsection (2).

(2) The local public notice is to contain —

(a) notification that —

(i) a plan for the future of the district has been adopted by the council and is to apply to the district for the period specified in the plan; and

(ii) details of where and when the plan may be inspected;

or

(b) where a plan for the future of the district has been modified —

(i) notification that the modifications to the plan have been adopted by the council and the plan as modified is to apply to the district for a the period specified in the plan; and

- (ii) details of where and when the modified plan may be inspected.

[Regulation 19D inserted in Gazette 31 Mar 2005 p. 1033-4.]

20. Closely associated persons — s. 5.62

- (1) In subregulation (2) —

client or adviser means a person who supplies, or receives, legal or financial professional services.

- (2) A relevant person who, within the previous 12 months, was a client or adviser of a relevant person is a person of a class of persons prescribed for the purposes of section 5.62(1)(ca).

- (3) The amount prescribed for the purposes of section 5.62(1)(d)(ii)(I) is \$10 000.

- (4) The percentage prescribed for the purposes of section 5.62(1)(d)(ii)(II) is 1%.

- (5) The prescribed manner of calculating the value of shares for the purposes of the (e) — any amount payable by way of penalty under section 7 of the *Primary Industries Levies and Charges Collection Act 1991*;

~~Section 84~~ (definition of “value” in section 5.62(2) is — “):

- (a) the closing share price of the shares on the Australian Stock Exchange Limited on the last trading day of the financial year; or

- (b) the nominal value of the share, if the share was not listed on the Australian Stock Exchange Limited on the last trading day of the financial year.

[Regulation 20 inserted in Gazette 31 Mar 2005 p. 1039-40; amended in Gazette 19 Aug 2005 p. 3873.]

21. Interests that need not be disclosed — s. 5.63(1)(h)

The interests prescribed for the purposes of section 5.63(1)(h) are as follows —

- (a) an interest relating to an allowance to which section 5.98A or 5.99A refers;
- (b) an interest (not being an interest referred to in section 5.63(1)) relating to the payment by the local government of money that the local government is legally obliged to pay;
- (c) an interest that a relevant person has in a matter that is the subject of a question directed to him or her during the time allocated for questions to be raised by members of the public and responded to at a meeting to which section 5.24(1)(a) or (b) applies;
- (d) an interest relating to the provision by a local government of refreshments, meals or accommodation to persons —
 - (i) attending a meeting or function of the local government;
 - (ii) attending a conference relevant to local government business; or
 - (iii) on other local government business;
- (e) an interest relating to —
 - (i) the provision by the local government of office equipment to a relevant person for both local government purposes and occasional personal use;
 - (ii) a relevant person becoming the owner of office equipment —
 - (I) that is provided under subparagraph (i) to the relevant person; and
 - (II) that has only minor residual value after use by the relevant person;

or

 - (iii) setting an amount of a minor residual value for the purposes of subparagraph (ii);
- (f) an interest relating to —

[(i), (ii) deleted]

- (iii) a gift that can be accepted by a relevant person in accordance with a code of conduct to be observed by the relevant person and the *Local Government (Rules of Conduct) Regulations 2007*.

[Regulation 21 inserted in Gazette 28 Jun 2002 p. 3080-1; amended in Gazette 21 Aug 2007 p. 4189.]

22. Form for primary returns — s. 5.75(1) and (2)

For the purposes of section 5.75(1) and (2), the form of a primary return is set out in Form 2.

23. Form for annual returns — s. 5.76(1) and (2)

For the purposes of section 5.76(1) and (2), the form of an annual return is set out in Form 3.

24. Amount of income up to which disclosure of the income's source is not required — s. 5.80(3)

The amount of income prescribed for the purposes of section 5.80(3) is \$500.

25. Amount of gift up to which disclosure of the gift is not required — s. 5.82(2)(a)

The amount of a gift prescribed for the purposes of section 5.82(2)(a) is \$500 for an annual return (s. 5.76) lodged before 1 January 2000 and \$200 for an annual return lodged on or after that time.

[Regulation 25 amended in Gazette 23 Apr 1999 p. 1718.]

26. Amount of contribution to travel up to which disclosure of the contribution is not required — s. 5.83(2)(d)

The amount of a contribution to travel prescribed for the purposes of section 5.83(2)(d) is \$500 for an annual return

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(s. 5.76) lodged before 1 January 2000 and \$200 for an annual return lodged on or after that time.

[Regulation 26 amended in Gazette 23 Apr 1999 p. 1718.]

27. Amount of debt up to which disclosure of the liability to pay the debt is not required — s. 5.85(2)(a)

The amount of debt to be paid prescribed for the purposes of section 5.85(2)(a) is \$500.

28. Register of financial interests — s. 5.88(2)

The register of financial interests is to be in a form that sets out —

(a) in relation to each disclosure made under section 5.65, 5.70 or 5.71 —

(i) the date of the disclosure; and

(ii) the nature of the interest disclosed;

(b) in relation to each disclosure made under section 5.65 or 5.70 where the extent of the interest has also been disclosed, the extent of the interest; and

(c) in relation to each disclosure made under section 5.65 or 5.70 —

(i) the date of the meeting at which the matter will be or was discussed; and

(ii) the number and details of the matter's agenda item at the meeting.

29. Information to be available for public inspection — s. 5.94

(1) Subject to subregulation (2), the information prescribed for the purposes of section 5.94(u)(ii) is —

(a) the information contained in a register to which section 5.18 applies;

(b) the information contained in a register to which section 5.46(1) applies;

- (ba) the information contained in an electoral gift register established and maintained under regulation 30G(1) of the *Local Government (Elections) Regulations 1997*;
- (baa) the information contained in a register maintained under regulation 12(5) of the *Local Government (Rules of Conduct) Regulations 2007*;
- (bb) the information contained in a register of notifiable gifts referred to in regulation 34B(5);
- (bc) details of a regional price preference policy adopted in accordance with Part 4A of the *Local Government (Functions and General) Regulations 1996*;
- (c) unconfirmed minutes of council or committee meetings;
- (d) notice papers and agenda relating to any council or committee meeting and reports and other documents which —
 - (i) are to be tabled at the meeting; or
 - (ii) have been produced by the local government or a committee for presentation at the meeting,and which have been made available to members of the council or committee for the meeting;
- (e) the information contained in a tenders register kept under the *Local Government (Functions and General) Regulations 1996*.
- (2) A person's right to inspect information referred to in section 5.94 does not extend to the inspection of information referred to in subregulation (1)(c) if the meeting or that part of the meeting to which the information refers —
 - (a) was closed to members of the public; or
 - (b) in the CEO's opinion, could have been closed to members of the public but was not closed,unless the information to be inspected is a record of a decision made at the meeting.

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- (3) A person's right to inspect information referred to in section 5.94 does not extend to the inspection of information referred to in subregulation (1)(d) if, in the CEO's opinion, the meeting or that part of the meeting to which the information refers is likely to be closed to members of the public.

[Regulation 29 amended in Gazette 23 Apr 1999 p. 1718; 25 Feb 2000 p. 969; 21 Aug 2007 p. 4189-90.]

29A. Limits on right to inspect local government information — s. 5.95

- (1) For the purposes of section 5.95(5)(b), ~~Omit the definition,~~ substitute the following information is prescribed as being of a private nature —

(a) the name, address and other personal details of the employee; and

(b) details regarding a bank, or other financial institution, where the employee's remuneration and other benefits are to be credited.

- (2) For the purposes of section 5.95(6), the following information is prescribed as information that is confidential but that, under section 5.95(7), may be available for inspection if a local government so resolves —

(a) information referred to in section 5.94 that would reveal the determination by the local government of a price for the sale or purchase of property by the local government;

(b) information referred to in section 5.94 about the discussion of such a matter; and

(c) information referred to in section 5.94 which deals with anything in respect of which a meeting has been closed under section 5.23.

- (3) The information referred to in subregulation (2)(a) and (b) is confidential until the sale or purchase takes place, or a decision is made that the sale or purchase will not take place.

[Regulation 29A inserted in Gazette 31 Mar 2005 p. 1040-1.]

30. Meeting attendance fees — s. 5.98(1)

- (1) For the purposes of section 5.98(1), subject to subregulation (3) —

(a) the minimum fee for a council member other than —

(i) the mayor or president; or

(ii) in the case of a regional local government, the chairman,

attending a council meeting is \$60 for each meeting; and

(b) the maximum fee for a council member other than —

(i) the mayor or president; or

(ii) in the case of a regional local government, the chairman,

attending a council meeting is \$140 for each meeting.

- (2) For the purposes of section 5.98(1), subject to subregulation (3) or (5), as the case requires —

(a) the minimum fee for a council member attending a meeting of a committee of which he or she is also a member is \$30 for each meeting; and

(b) the maximum fee for a council member attending a meeting of a committee of which he or she is also a member is \$70 for each meeting.

- (3) The total of fees paid to a council member other than —

(a) the mayor or president; or

(b) in the case of a regional local government, the chairman,

for attending meetings (whether of the council or of any committee) in each year is not to exceed \$7 000.

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(4) For the purposes of section 5.98(1), subject to subregulation (5) —

(a) the minimum fee —

(i) for the mayor or president; or

(ii) in the case of a regional local government, for the chairman,

attending a council meeting is \$120 for each meeting; and

(b) the maximum fee —

(i) for the mayor or president; or

(ii) in the case of a regional local government, for the chairman,

attending a council meeting is \$280 for each meeting.

(5) The total of fees paid —

(a) to the mayor or president; or

(b) in the case of a regional local government, to the chairman,

for attending meetings (whether of the council or of any committee) in each year is not to exceed \$14 000.

[Regulation 30 amended in Gazette 23 Apr 1999 p. 1719; 31 Mar 2005 p. 1034.]

31. Expenses that are to be reimbursed — s. 5.98(2)(a) and (3)

(1) For the purposes of section 5.98(2)(a), the kinds of expenses that are to be reimbursed by all local governments are —

(a) rental charges incurred by a council member in relation to one telephone and one facsimile machine; and

(b) child care and travel costs incurred by a council member because of the member's attendance at a council meeting or a meeting of a committee of which he or she is also a member.

(2) The extent to which an expense referred to in subregulation (1)(a) can be reimbursed is the actual amount.

(3) The extent to which child care costs referred to in subregulation (1)(b) can be reimbursed is the actual cost per hour or \$20.00 per hour, whichever is the lesser amount.

(4) The extent to which travel costs referred to in subregulation (1)(b) can be reimbursed —

(a) if the person lives or works in the local government district or an adjoining local government district, is the actual cost for the person to travel from the person's place of residence or work to the meeting and back; or

(b) if the person does not live or work in the local government district or an adjoining local government district, is the actual cost, in relation to a journey from the person's place of residence or work and back —

(i) for the person to travel from the person's place of residence or work to the meeting and back; or

(ii) if the distance travelled referred to in subparagraph (i) is more than 100 km, for the person to travel from the outer boundary of an adjoining local government district to the meeting and back to that boundary.

(5) For the purposes of subregulations (2) to (4), actual amounts and actual costs are to be verified by sufficient information.

[Regulation 31 amended in Gazette 31 Mar 2005 p. 1034.]

32. Expenses that may be approved for reimbursement — s. 5.98(2)(b) and (3)

(1) For the purposes of section 5.98(2)(b), the kinds of expenses that may be approved by any local government for reimbursement by the local government are —

(a) an expense incurred by a council member in performing a function under the express authority of the local government;

(b) an expense incurred by a council member to whom paragraph (a) applies by reason of the council member being accompanied by not more than one other person while performing the function if, having regard to the nature of the function, the local government considers that it is appropriate for the council member to be accompanied by that other person; and

(c) an expense incurred by a council member in performing a function in his or her capacity as a council member.

(2) The extent to which an expense referred to in subregulation (1) can be reimbursed is the actual amount, verified by sufficient information.

33. Annual local government allowance for mayors or presidents — s. 5.98(5)

(1) For the purposes of section 5.98(5) —

(a) the minimum annual local government allowance for a mayor or president is \$600; and

(b) the maximum annual local government allowance for a mayor or president is —

(i) \$12 000; or

(ii) 0.002 of the local government's operating revenue, whichever is the greater amount, but in any case no more than \$60 000.

(2) In this regulation —

operating revenue has the meaning that it has in the *Local Government (Financial Management) Regulations 1996*.

[Regulation 33 amended in Gazette 23 Apr 1999 p. 1719; 31 Mar 2005 p. 1034.]

33A. Annual local government allowance for deputies — s. 5.98A

For the purposes of section 5.98A(1) the prescribed percentage is 25%.

[Regulation 33A inserted in Gazette 23 Apr 1999 p. 1719.]

34. Annual attendance fees — s. 5.99

(1) For the purposes of section 5.99 —

(a) the minimum annual fee for a council member other than —

(i) the mayor or president; or

(ii) in the case of a regional local government, the chairman,

attending meetings (whether of the council or of any committee) is \$2 400; and

(b) the maximum annual fee for a council member other than —

(i) the mayor or president; or

(ii) in the case of a regional local government, the chairman,

attending meetings (whether of the council or of any committee) is \$7 000.

(2) For the purposes of section 5.99 —

(a) the minimum annual fee —

(i) for the mayor or president; or

(ii) in the case of a regional local government, for the chairman,

attending meetings (whether of the council or of any committee) is \$6 000; and

(b) the maximum annual fee —

(i) for the mayor or president; or

r. 34A

(ii) in the case of a regional local government, for the chairman,

attending meetings (whether of the council or of any committee) is \$14 000.

[Regulation 34 amended in Gazette 23 Apr 1999 p. 1719-20; 31 Mar 2005 p. 1035.]

34A. Allowances in lieu of reimbursement of telecommunications expenses — s. 5.99A

For the purposes of section 5.99A(b), the maximum total annual allowance for telephone and facsimile machine rental charges referred to in regulation 31(1)(a) and any other telecommunications expenses that might otherwise have been approved for reimbursement under regulation 32 is \$2 400.

[Regulation 34A inserted in Gazette 23 Apr 1999 p. 1720; amended in Gazette 31 Mar 2005 p. 1035.]

34AA. Allowances in lieu of reimbursement of information technology expenses — s. 5.99A

For the purposes of section 5.99A(b), the maximum total annual allowance for information technology expenses that have been approved for reimbursement under regulation 32 is \$1 000.

[Regulation 34AA inserted in Gazette 31 Mar 2005 p. 1035.]

34AB. Allowances in lieu of reimbursement of travelling and accommodation expenses — s. 5.99A

(1) For the purposes of section 5.99A(b), the maximum annual allowance for travelling and accommodation expenses —

(a) prescribed as being a kind of expense to be reimbursed by all local governments under regulation 31; or

(b) that have been approved for reimbursement under regulation 32.

is the same amount as the amount to which a person would be entitled for those expenses in the same circumstances under the Public Service Award.

(2) In this regulation —

Public Service Award means the *Public Service Award 1992* issued by the Western Australian Industrial Relations Commission as amended from time to time.

[Regulation 34AB inserted in Gazette 31 Mar 2005 p. 1035.]

34B. Codes of conduct (gifts) — s. 5.103(3)

(1) In this regulation —

activity involving a local government discretion means an activity —

- (a) that cannot be undertaken without an authorisation from the local government; or
- (b) by way of a commercial dealing with the local government;

gift has the meaning given to that term in section 5.82(4) except that it does not include —

- (a) a gift from a relative as defined in section 5.74(1); or
- (b) a gift that must be disclosed under regulation 30B of the *Local Government (Elections) Regulations 1997*; or
- (c) a gift from a statutory authority, government instrumentality or non-profit association for professional training;

notifiable gift, in relation to a person who is an employee, means —

- (a) a gift worth between \$50 and \$300; or
- (b) a gift that is one of 2 or more gifts given to the employee by the same person within a period of 6 months that are in total worth between \$50 and \$300;

r. 34B

prohibited gift, in relation to a person who is an employee,
means —

(a) a gift worth \$300 or more; or

(b) a gift that is one of 2 or more gifts given to the employee
by the same person within a period of 6 months that are
in total worth \$300 or more.

(2) A code of conduct is to contain a requirement that a person who
is an employee refrain from accepting a prohibited gift from a
person who —

(a) is undertaking or seeking to undertake an activity
involving a local government discretion; or

(b) it is reasonable to believe is intending to undertake an
activity involving a local government discretion.

(3) A code of conduct is to contain a requirement that a person who
is an employee and who accepts a notifiable gift from a person
who —

(a) is undertaking or seeking to undertake an activity
involving a local government discretion; or

(b) it is reasonable to believe is intending to undertake an
activity involving a local government discretion,

notify the CEO, in accordance with subregulation (4) and within
10 days of accepting the gift, of the acceptance.

(4) A code of conduct is to require that the notification of the
acceptance of a notifiable gift be in writing and include —

(a) the name of the person who gave the gift; and

(b) the date on which the gift was accepted; and

(c) a description, and the estimated value, of the gift; and

(d) the nature of the relationship between the person who is
an employee and the person who gave the gift; and

(e) if the gift is a notifiable gift under paragraph (b) of the
definition of “notifiable gift” in subregulation (1)

(whether or not it is also a notifiable gift under paragraph (a) of that definition) — ÷

(i) a description; and

(ii) the estimated value; and

(iii) the date of acceptance,

of each other gift accepted within the 6 month period.

- (5) A code of conduct is to require that the CEO maintain a register of notifiable gifts and record in it details of notifications given to comply with a requirement made under subregulation (3).

[Regulation 34B inserted in Gazette 21 Aug 2007 p. 4190-1.]

34C. Codes of conduct (disclosure of interests affecting impartiality) — s. 5.103(3)

- (1) In this regulation —

interest means an interest that could, or could reasonably be perceived to, adversely affect the impartiality of the person having the interest and includes an interest arising from kinship, friendship or membership of an association.

- (2) A code of conduct is to contain a requirement that a person who is an employee and who has an interest in any matter to be discussed at a council or committee meeting attended by the person disclose the nature of the interest —

(a) in a written notice given to the CEO before the meeting;
or

(b) at the meeting immediately before the matter is discussed.

- (3) A code of conduct is to contain a requirement that a person who is an employee and who has given, or will give, advice in respect of any matter to be discussed at a council or committee meeting not attended by the person disclose the nature of any interest the person has in the matter —

r. 34C

- (a) in a written notice given to the CEO before the meeting;
or
 - (b) at the time the advice is given.
- (4) A code of conduct is to exclude from a requirement made under subregulation (2) or (3) an interest referred to in section 5.60.
- (5) A code of conduct is to excuse a person from a requirement made under subregulation (2) or (3) to disclose the nature of an interest if —
 - (a) the person's failure to disclose occurs because the person did not know he or she had an interest in the matter; or
 - (b) the person's failure to disclose occurs because the person did not know the matter in which he or she had an interest would be discussed at the meeting and the person discloses the nature of the interest as soon as possible after becoming aware of the discussion of a matter of that kind.
- (6) A code of conduct is to require that if, to comply with a requirement made under subregulation (2) or (3), a person who is an employee makes a disclosure in a written notice given to the CEO before a meeting then —
 - (a) before the meeting the CEO is to cause the notice to be given to the person who is to preside at the meeting; and
 - (b) immediately before a matter to which the disclosure relates is discussed at the meeting the person presiding is to bring the notice and its contents to the attention of the persons present.
- (7) If —
 - (a) to comply with a requirement made under subregulation (2), the nature of a person's interest in a matter is disclosed at a meeting; or

(b) a disclosure is made as described in subregulation (5)(b) at a meeting; or

(c) to comply with a requirement made under subregulation (6)(b), a notice disclosing the nature of a person's interest in a matter is brought to the attention of the persons present at a meeting.

the nature of the interest is to be recorded in the minutes of the meeting.

[Regulation 34C inserted in Gazette 21 Aug 2007 p. 4192-3.]

[35-39. Omitted under the Reprints Act 1984 s. 7(4)(e).]

Schedule 1 — Forms

Form 1

[reg. 16]

Local Government Act 1995

Local Government (Administration) Regulations 1996

REQUEST FOR A SPECIAL MEETING OF ELECTORS

TO: The ⁽¹⁾ Mayor/President of ⁽²⁾

1. Under section 5.28 of the *Local Government Act 1995*, the electors of ⁽³⁾ whose names, addresses and signatures are set out in the attached list and who comprise ⁽¹⁾ 100 electors/5% of the number of electors request that a special meeting of the electors of the district be held.

2. The details of the matter to be discussed at the special meeting are —

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3. This request is served on behalf of the listed signatories by —

Name

Signature

Contact details

Date

(1) delete the one that does not apply

(2) insert name of local government

(3) insert name of district

Form 1 “‘value’ has the same meaning as in the *Wheat Industry Fund Levy Act 1989*.”

SCHEDULE 1—continued: form of each page of listed signatories

We, ~~Wine Grapes Levy Act 1979~~

Section 3:

~~Repeal the undersigned, request that a special meeting~~~~section.~~

Subsection 4(1) (definitions of “proprietor” and “year”):

~~Omit the electors~~~~definitions.~~

Section 4:

Add at the end the following subsection:

“(6) Unless the contrary intention appears, a word or expression contained in this Act that is not defined for the purposes of the district be held this Act but is defined in the *Primary Industries Levies and Charges Collection Act 1991* for the purposes of that Act has the same meaning in this Act as in the *Primary Industries Levies and Charges Collection Act 1991*.”.

Section 7:

~~Repeal the section, substitute the following section:~~

By whom levy payable

~~“7. Levy in respect of any prescribed goods used at a winery during a year in the manufacture of wine is payable by the producer.”.~~

SCHEDULE 2

Section 4

REPEAL OF ACTS

~~*Apple and Pear Export Charge Collection Act 1976*~~

~~*Apple and Pear Levy Collection Act 1976*~~

~~*Barley Research Levy Collection Act 1980*~~

~~*Cattle and Beef Levy Collection Act 1990*~~

~~*Cotton Levy Collection Act 1982*~~

~~*Dairying Industry Research and Promotion Levy Act 1972*~~

~~*Dried Fruits Levy Collection Act 1971*~~

~~*Egg Industry Research (Hen Quota) Levy Collection Act 1987*~~

Goat Fibre Levy Collection Act 1989

Grain Legumes Levy Collection Act 1985

Grape Research Levy Collection Act 1986

Honey Export Charge Collection Act 1973

Honey Levy Collection Act 1962

Horticultural Export Charge Collection Act 1987

SCHEDULE 2—continued

Horticultural Levy Collection Act 1987
Laying Chickens Levy Collection Act 1988
Live-stock Export Charge Collection Act 1977
Live-stock Slaughter Levy Collection Act 1964
Meat Chicken Levy Collection Act 1969
Oilseeds Levy Collection Act 1977
Pasture Seed Levy Collection Act 1989
Pig Slaughter Levy Collection Act 1971
Poultry Industry Levy Collection Act 1965
Sugar Cane Levy Collection Act 1987
Triticale Levy Collection Act 1988
Wheat Industry Fund Levy Collection Act 1989
Wine Grapes Levy Collection Act 1979

SCHEDULE 3

Section 9

PROVISIONS THAT PROVIDE FOR THE REVIEW OF DECISIONS

<u>Full name of elector</u> *Column 1	<u>Address which entitles you to vote in the elections of the local government affected by this request</u> Column 2	<u>Signature of elector</u> Column 3	<u>Date</u>
Item No.	Provision	Act	
1	Section 36	<i>Barley Levy Collection Act 1980</i>	
2	Section 29	<i>Cotton Levy Collection Act 1982</i>	
3	Section 10A	<i>Dairying Industry Research and Promotion Levy Collection Act 1972</i>	
4	Subsections 7 (5), (6) and (7)	<i>Egg Industry Research (Hen Quota) Levy Collection Act 1987</i>	
5	Section 17	<i>Goat Fibre Levy Collection Act 1989</i>	
6	Section 14	<i>Grain Legumes Levy Collection Act 1985</i>	
7	Section 14	<i>Grape Research Levy Collection Act 1986</i>	
8	Section 12A	<i>Honey Levy Collection Act 1962</i>	
9	Section 19	<i>Horticultural</i>	

		<i>Export Charge Collection Act 1987</i>	
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10	Section 19	Horticultural Levy Collection Act 1987
11	Section 17	Laying Chicken Levy Collection Act 1988
12	Section 15A	Live stock Slaughter Levy Collection Act 1964
13	Section 10A	Meat Chicken Levy Collection Act 1969
14	Section 13	Pasture Seed Levy Collection Act 1989
15	Section 11A	Poultry Industry Levy Collection Act 1965
16	Section 14	Sugar Cane Levy Collection Act 1987
17	Section 18	Triticale Levy Collection Act 1988
18	Section 19	Wheat Industry Fund Levy Collection Act 1989
19	Section 13	Wine Grapes Levy Collection Act 1979

* An elector may be one of the following —

- a resident owner or occupier enrolled to vote at State elections;
- an owner of rateable property (e.g. an absentee land owner or an owner of business premises, vacant land or other non-residential property);
- an occupier of rateable property (e.g. a tenant of business premises or other non-residential property).

Form 2

[reg. 22]

*Local Government Act 1995**Local Government (Administration) Regulations 1996***PRIMARY RETURN**

Surname Other names

Office held

Start day

1. Real property

Section 5.79 of the Act

<u>Addresses</u>	<u>Nature of Interest</u>

2. Income sources

Section 5.80 of the Act

(a) income from an occupation

<u>Description of the occupation</u>	<u>Name and address of employer</u>	<u>Description of office held</u>	<u>Name of the partnership</u>

(b) income from a trust

<u>Name of trust</u>	<u>Name and address of settlor</u>	<u>Name and address of trustee</u>

(c) sources of other income

<u>Identity of persons</u>
<u>Describe circumstances</u>

3. Trusts

Section 5.81 of the Act

Trusts in which the relevant person holds a beneficial interest

<u>Name of trust</u>	<u>Name and address of settlor</u>	<u>Name and address of trustee</u>

Discretionary trusts of which the relevant person is a trustee or an object

<u>Name of trust</u>	<u>Name and address of settlor</u>	<u>Name and address of trustee</u>

4. Interests and positions in corporationsSection 5.84 of the Act

<u>Name & address of corporation</u>	<u>Nature of interest/ position held</u>	<u>Principal business (if required)</u>

5. DebtsSection 5.85 of the Act

<u>Name of lender/creditor</u>	<u>Address of lender/creditor</u>

6. Discretionary disclosures

Section 5.87 of the Act

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Signature Date

Form 3

[reg. 23]

*Local Government Act 1995**Local Government (Administration) Regulations 1996***ANNUAL RETURN**

Surname Other names

Office held

Disclosure of interests for the return period from to 30 June

1. Real property

Section 5.79 of the Act

<u>Address</u>	<u>Nature of interest</u>

2. Income sources

Section 5.80 of the Act

(a) income from an occupation

<u>Description of the occupation</u>	<u>Name and address of employer</u>	<u>Description of office held</u>	<u>Name of the partnership</u>

(b) income from a trust

<u>Name of trust</u>	<u>Name and address of settlor</u>	<u>Name and address of trustee</u>

(c) sources of other income

<u>Identity of persons</u>
<u>Describe circumstances</u>

3. Trusts

Section 5.81 of the Act

Trusts in which the relevant person holds a beneficial interest

<u>Name of trust</u>	<u>Name and address of settlor</u>	<u>Name and address of trustee</u>

Discretionary trusts of which the relevant person is a trustee or an object

<u>Name of trust</u>	<u>Name and address of settlor</u>	<u>Name and address of trustee</u>

4. GiftsSection 5.82 of the Act

<u>Description of gift</u>	<u>Value of gift</u>	<u>Name and address of giver</u>

5. Contributions to travelSection 5.83 of the Act

<u>Description of contribution</u>	<u>Value of contribution</u>	<u>Name and address of contributor</u>

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6. Interests and positions in corporations

Section 5.84 of the Act

<u>Name and address of corporation</u>	<u>Nature of interest/ position held</u>	<u>Principal business (if required)</u>

7. Debts

Section 5.85 of the Act

<u>Name of lender/creditor</u>	<u>Address of lender/creditor</u>

8. Disposition of property

Section 5.86 of the Act

(a) section 5.86(1)

<u>Address of property</u>	<u>Manner of disposition</u>	<u>Date of disposition</u>	<u>Nature of interest retained</u>

(b) section 5.86(2)

<u>Address of property</u>	<u>Person by whom property disposed</u>	<u>Person to whom property disposed</u>	<u>Manner of disposition</u>	<u>Date of disposition</u>	<u>Nature of interest obtained</u>

9. Discretionary disclosures

Section 5.87 of the Act

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Signature Date

[Form 3 amended in Gazette 20 Nov 2009 p. 4661.]

Notes

¹ This is a compilation of the *Local Government (Administration) Regulations 1996* and includes the amendments made by the other written laws referred to in the following table. The table also contains information about any reprint.

Compilation table

<u>Citation</u>	<u>Gazettal</u>	<u>Commencement</u>
<i><u>Local Government (Administration) Regulations 1996</u></i>	<u>24 Jun 1996</u> <u>p. 2799-826</u>	<u>1 Jul 1996 (see r. 2)</u>
<i><u>Local Government (Administration) Amendment Regulations 1996</u></i>	<u>28 Jun 1996</u> <u>p. 3171</u>	<u>1 Jul 1996</u>
<i><u>Local Government (Administration) Amendment Regulations 1999</u></i>	<u>23 Apr 1999</u> <u>p. 1717-21</u>	<u>23 Apr 1999</u>
<i><u>Local Government (Administration) Amendment Regulations 2000</u></i>	<u>25 Feb 2000</u> <u>p. 969</u>	<u>25 Feb 2000 (see r. 2 and Gazette 25 Feb 2000 p. 970)</u>
<i><u>Local Government (Administration) Amendment Regulations 2002</u></i>	<u>28 Jun 2002</u> <u>p. 3079-81</u>	<u>28 Jun 2002</u>
<u>Reprint of the Local Government (Administration) Regulations 1996 as at 30 Aug 2002</u> (includes amendments listed above)		
<i><u>Local Government (Administration) Amendment Regulations 2005</u>²</i>	<u>31 Mar 2005</u> <u>p. 1030-6</u>	<u>1 Apr 2005 (see r. 2 and Gazette 31 Mar 2005 p. 1029)</u>
<i><u>Local Government (Administration) Amendment Regulations (No. 2) 2005</u></i>	<u>31 Mar 2005</u> <u>p. 1037-41</u>	<u>7 May 2005 (see r. 2)</u>
<i><u>Local Government (Administration) Amendment Regulations (No. 3) 2005</u></i>	<u>13 May 2005</u> <u>p. 2086</u>	<u>13 May 2005</u>
<i><u>Local Government (Administration) Amendment Regulations (No. 4) 2005</u></i>	<u>19 Aug 2005</u> <u>p. 3871-3</u>	<u>19 Aug 2005</u>
<u>Reprint 2: The Local Government (Administration) Regulations 1996 as at 17 Nov 2006</u> (includes amendments listed above)		
<i><u>Local Government (Administration) Amendment Regulations 2007</u></i>	<u>21 Aug 2007</u> <u>p. 4189-93</u>	<u>r. 1 and 2: 21 Aug 2007 (see r. 2(a)); Regulations other than r. 1 and 2: 21 Oct 2007 (see r. 2(b) and Gazette 21 Aug 2007 p. 4173)</u>
<i><u>Local Government (Administration) Amendment Regulations 2009</u></i>	<u>20 Nov 2009</u> <u>p. 4660-1</u>	<u>r. 1 and 2: 20 Nov 2009 (see r. 2(a)); Regulations other than r. 1 and 2: 21 Nov 2009 (see r. 2(b) and Gazette 20 Nov 2009 p. 4649)</u>

² The *Local Government (Administration) Amendment Regulations 2005* r. 15 reads as follows:

“
—

15. Increased minimum fees and allowances not mandatory until 1 July 2005

- (1) Where these regulations increase the amount of a minimum fee or allowance prescribed under section 5.98 or 5.99 a person is entitled to the increased amount only on and after 1 July 2005.
- (2) Until 1 July 2005, a local government may choose to pay to a person entitled to a minimum fee or allowance prescribed under section 5.98 or 5.99 the amount of the fee or allowance to which the person —
 - (a) was entitled immediately before these regulations came into operation; or
 - (b) would be entitled on and after 1 July 2005.
- (3) If, under subregulation (2), a local government makes a choice to pay a person a fee or allowance to which the person would be entitled on and after 1 July 2005, then that local government must make the same choice when paying all other persons entitled to be paid that same fee or allowance.

”
—

*[Minister's second reading speech made in—
House of Representatives on 5 December 1990
Senate on 18 February 1991]*